

DEFINITIVE STOPS

A global compendium of the mechanisms that permanently kill a destructive project — and an honest measure of how durable each one really is

Kills versus delays

Almost everything a community can bring against a project only buys time. Environmental-review challenges — CEQA, NEPA, the EIA regimes of most countries, the EU EIA Directive, the Espoo Convention across borders — are procedural: winning one sends the paperwork back to be redone, and the project returns a year later. That year is valuable, because it is often the time in which financing lapses or politics shift, but it is a delay, not a death.

This document is about the other category: the mechanisms that end a project outright, so that no amount of redone paperwork revives it. They are rare, jurisdiction-specific, and easy to over-claim. The discipline that separates a real one from a false one is a single test applied to every candidate.

The test. A mechanism only holds if overriding it would require a deliberate, expensive, publicly visible act — ideally by a legislature — rather than a quiet payment, a lapsed deadline, an administrative sign-off, or a small redesign. Concretely, a true stop survives all five of the ordinary ways a barrier is defeated, and even then remains exposed to the sixth, which hangs over everything:

1. **Cured by payment.** If the mechanism's own remedy is compensation, replacement, or a fee, the proponent pays and proceeds. Any protection whose consequence is money is a cost, never a kill. (The California §5400/§5401 parkland-records-and-compensation pattern is the model: a court compels payment or replacement land; it does not unwind the conveyance.)
2. **Extinguished by time.** Old interests are silently killed by marketable-title acts, stale-interest and obsolete-restriction statutes, limitation periods, and perpetuity rules — unless someone recorded a preservation notice inside the statutory window. Reverters, rights of re-entry, powers of termination, and old covenants are the classic casualties.
3. **Overridden by discretion.** Most protective regimes carry a built-in derogation, exemption, or authorization path.
4. **Released or de-designated.** The holder of a benefit can release it; an authority can de-list, re-zone, or re-draw a boundary; a tribunal can discharge a restriction; a court can reallocate a trust.
5. **Relocated around.** If the footprint can move a few metres, or the obstacle can be lawfully moved, the barrier constrains the design without killing the project.
6. **Expropriated or legislated away.** The universal residual: a sovereign can condemn land and amend a statute. This applies to everything, including outright ownership. Permanence is therefore always a matter of degree — of how costly and visible an override would be.

The working rule: **assume every candidate has a cure until you have found the cure and confirmed it is shut in your specific case.** What follows is sorted by how well each mechanism survives that scrutiny.

Tier 1 — What actually holds

These do not rely on a defect that can be cured, timed out, or waved away. They are few. The residual expropriation risk still applies, so each is rated by how hard that override is.

Ownership of the land, in fee, for conservation. The only stop that rests on nothing that can be cured, because it exploits no defect — a conservation buyer, land trust, community, or public body simply holds the parcel and declines to let the project happen, forever, with no litigation to sustain it. The residual: it requires a willing seller and money, and the state could still condemn — but condemning conservation-owned land for a destructive purpose is slow, costly, and politically exposed. Acquisition is worth more than any argument, which is why it anchors this list.

A perpetual conservation easement held by a durable, funded holder. Engineered to be permanent and, by statute in many jurisdictions, exempted from the common-law defenses — changed conditions, abandonment, non-enforcement — that defeat ordinary covenants; extinguishment generally requires a court finding of genuine impossibility (*cy-près*) or a condemnation. The durability of the holder is part of the instrument: a well-drafted easement held by a serious, permanent, resourced organisation is close to a wall; an under-funded one is weaker than it looks.

Statutory inalienability. Land placed by a legislature behind a special-procedure barrier, so that it cannot be sold or compulsorily acquired without a specific, deliberate legislative act. The English National Trust Act 1907's power to declare land *inalienable* is the cleanest example; certain dedicated public lands and public-trust lands function similarly. Override requires exactly the deliberate, on-the-record legislative act that ordinary designations lack — which is what makes it near-bulletproof.

An unobtainable, incurable prerequisite. The project needs one thing it cannot buy or manufacture. The purest case is a firm senior water right in a fully-appropriated, closed basin: water rights that do not exist cannot be created, and if none can be bought, the project is dead on the resource regardless of every permit. Others: a keystone parcel whose sole owner will never sell and cannot be condemned for the use; a genuinely mandatory consent — not a duty to consult — that is genuinely refused. The whole weight sits on the word *unobtainable*: confirm the thing is truly unavailable, not merely expensive or slow.

Remains or sacred ground the law forbids disturbing outright. Where the applicable law provides no lawful route to exhumate, relocate, or authorize disturbance — a genuine legal inviolability rather than a stop-work-then-relocate rule. Because most regimes do offer a disinterment license, an authorization certificate, or a preservation-by-record option, this belongs in Tier 1 only after you confirm no such route exists for the specific site. Where confirmed, it overrides development law from outside it and is among the hardest walls there is.

Tier 2 — Strong, but with a known door

Real barriers, often decisive, each with an identified exit. Locate the exit and judge whether the other side can use it before building a strategy on the mechanism.

Charitable trust, public dedication, and the public-trust doctrine. Land held in charitable trust for a purpose, formally dedicated to public use, or held by the state under the public-trust doctrine (strong in the United States over tidelands and navigable waters; expansively developed by the Supreme Court of India over forests and ecologically fragile land) resists diversion to another use. The door: *cy-près* approval by a court; a special legislative authorization to sell or convert, routinely used for parkland; and the principle (the

Illinois Central line) that the state may reallocate trust land in some circumstances even though it cannot abdicate the trust.

Defective or unobtainable title. If the proponent lacks clean title to all the land the project needs — a gap in the chain, an unresolved heir, an unreleased lien, a blocking easement, a competing claim, or a prescriptive public right of way across the site — the project cannot lawfully proceed until it is cured. The door: most clouds are curable with money and time (quiet title, buy out the claimant, release the lien). It becomes a Tier 1 stop only where the missing interest is genuinely unobtainable.

A void approval. An approval obtained by fraud or corruption, or granted by a body with no legal power to grant it (*ultra vires*, a jurisdictional defect, a mandatory precondition never satisfied), can be void *ab initio* — a nullity, with nothing to redo. The door: the usual cure is to re-apply and obtain a valid approval, so a void approval kills the current permit but the project only if the underlying substantive prerequisite can never lawfully be met.

Registered town or village green, and analogous commons registrations. In England and Wales, registration under the commons legislation (on proof of twenty years' recreational use as of right) permanently bars development, with no overriding-public-interest exception — genuinely close to a wall once achieved. The door is at the front end: the Growth and Infrastructure Act 2013 introduced "trigger events" that suspend the right to apply once land enters the planning pipeline, so the route may already be closed if the land is under a planning application or allocation. You are racing the trigger.

Unextinguished indigenous, native, aboriginal, or customary title. Where recognized and genuinely unextinguished, it can burden or block a project, and under the strongest consent regimes (the Philippines' ancestral-domain FPIC) can approach a veto. The door: the central inquiry is *whether* the title was validly extinguished, and most systems apply a justification-and-compensation test rather than an absolute veto (Canada's *Tsilhqot'in* permits justified infringement; Australian native title is frequently subordinated and resolved in compensation; a duty to "consult" is often read down from a requirement to obtain "consent").

Inalienable communal land — ejido, waqf, glebe, registered commons. Legally non-transferable, so a purported conveyance is void. The door: most such regimes contain a defined conversion or exchange process (Mexican ejido privatization; the exchange of waqf property), difficult but available; the stop holds unless and until that process is completed.

Tier 3 — Looks dispositive, usually is not

Each of these is worth checking, and any can buy real delay or force real redesign, but each carries a standard cure, time-bar, or override, and none should be relied on as a kill without first clearing the test.

- **Reverters, conditions subsequent, and possibilities of reverter.** The most over-claimed instrument in the field, because reversionary interests are the most heavily time-barred in property law. Marketable-title and stale-interest statutes convert and then expire them unless a preservation notice was recorded — and they do so *notwithstanding contrary language in the deed*. California's scheme is the clean illustration: Civil Code §885.020 converts a possibility of reverter into a power of termination, §885.030 expires that power thirty years after the instrument was recorded absent a recorded notice of intent to preserve, and §885.060 makes the expiration a self-executing quitclaim. A pre-1990s "for park use only" forfeiture clause is more likely dead than alive. *Defeated by: time*.
- **Ordinary restrictive covenants.** Discharged or modified by a lands tribunal (England's Law of Property Act 1925 s.84), defeated by changed conditions, abandonment, or non-enforcement, and swept by

marketable-title acts. *Defeated by: release and time.*

- **Endangered-species "take" prohibitions.** Even the US Endangered Species Act — which in *TVA v. Hill* enjoined a nearly-complete dam — yields to a §10 incidental-take permit with a habitat conservation plan, to the Endangered Species Committee exemption, and, as the Tellico Dam showed, to an act of Congress that let the dam be finished. *Defeated by: discretion, exemption, sometimes relocation.*
- **Natura 2000 and the EU Habitats Directive Article 6.** The strongest review-based bar in the world, but expressly derogable for imperative reasons of overriding public interest with compensatory measures — harder, but still available, for priority sites via a European Commission opinion. *Defeated by: discretion.*
- **National park and protected-area designations.** Frequently prohibit development, but legislatures de-designate, re-draw boundaries, and grant statutory exceptions. *Defeated by: de-designation, legislation.*
- **Registered sacred sites, scheduled monuments, and chance-find archaeology.** Stop-work is real and preservation in situ can foreclose a spot, but authorization certificates, scheduled-monument consent, and preservation-by-record (excavate and remove) are the usual outcomes — and Juukan Gorge was destroyed under a lawful heritage consent. *Defeated by: authorization, relocation-by-record.*
- **Cemeteries and discovered human remains.** Powerful, but disinterment-and-reinterment licenses exist almost everywhere, and a descendant recommendation to leave remains in place binds only where the law makes it binding. A kill only where disturbance is legally forbidden outright. *Defeated by: disinterment license.*
- **Records-and-compensation statutes (the §5400 pattern).** The remedy is money or replacement, so compliance is bought. *Defeated by: payment.*
- **Fault-zone and floodway prohibitions.** Bar a use at a location; the structure can usually be set back off the fault trace or the footprint reconfigured, and floodway lines can sometimes be revised. *Defeated by: relocation.*
- **Rezoning and most local referenda.** Reversible by the next council and often preempted by higher government; durable only when locked in with a conservation designation or acquisition. *Defeated by: reversal, preemption.*
- **Rights of nature and constitutional environmental rights.** Real and growing (Ecuador; the Whanganui and Atrato rivers as legal persons), but rarely an automatic veto and with enforcement still uncertain. *Defeated by: uncertain standing and remedy.*
- **Financing, insurance, offtake, and developer insolvency.** Often the most decisive killers in fact — a project no one will fund, insure, or buy from is dead — but reversible in law: capital, insurers, buyers, and owners can be replaced, and stalled projects are acquired out of bankruptcy. *Defeated by: replacement.*

The diagnostic order

Do the cheap, dispositive checks first, and pair every discovery with its failure mode, so that no candidate is ever carried forward as a conclusion.

1. **Pull the title and deeds — then time-test them.** Find the reverters, conditions, covenants, easements, trust and dedication language; then check the jurisdiction's marketable-title or stale-interest statute and search the record for any notice of intent to preserve. An old forfeiture clause with no preservation notice is presumptively dead; ask, too, whether its remedy is merely money. This step is often ten dollars and a few days, and it is the only place a free kill usually hides.

2. **Check the land's status and species — then find the derogation.** Parks, reserves, Ramsar, Natura 2000, commons or green registration, sacred-site registers, scheduled monuments, listed structures, critical habitat, protected species. For each, locate the exemption, authorization, or de-designation path and judge whether the proponent can use it.

3. **Check the physical constraints — then ask whether the footprint can move.** Fault zones, floodways, exclusion and buffer zones, water availability. A relocatable constraint is a redesign; an unobtainable water right in a closed basin is a resource kill.

4. **Check for the dead — then ask whether the law forbids relocation.** Known or suspected burials and the human-remains and chance-find law, as both present bar and live contingency. If disinterment or authorization is lawfully available, this is delay, not a wall.

5. **Check consent and ownership — then ask whether they are truly unobtainable.** Is any consent genuinely mandatory and refused? Is any needed parcel or right genuinely unbuyable and un-condemnable?

6. **Only then weigh the delay tools and the financial structure** — the procedural challenges, the lenders, insurers, and buyers, and above all the possibility of acquiring the land or its development rights outright.

Take to a lawyer not a "kill" but a candidate that has already survived the test, with the failure mode identified and closed — because the failure mode is the first thing the lawyer will probe.

Bottom line

The mechanisms that reliably hold are a short set: the land or the development rights **owned** for conservation; land made **inalienable** by a specific statute; the rare **uncurable prerequisite** — the water that does not exist, the parcel that cannot be had; and the grave or sacred ground the law forbids **anyone** to disturb. They share one quality: overriding them takes a deliberate, expensive, visible act, usually by a legislature, not a quiet payment, a lapsed deadline, or an administrative signature. Everything else — reverts, covenants, species, designations, heritage, referenda, finance — is a barrier with a door, and the work is discovering whether the door is locked in the particular case.

So the surest path is to find the thing you can own, or that a statute has already sealed; and for every other mechanism, to find the door before staking anything on the wall. Assume a cure exists until you have found it and confirmed it is shut. What remains after that scrutiny is what actually stops a project — permanently.